

11th Legislative Body
11th Special Session
Series of 1996

Republic of the Philippines
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod

EXCERPTS FROM THE MINUTES OF THE SPECIAL SESSION OF THE SANGGUNIANG
PANLUNGSOD, CITY OF DAVAO, HELD ON TUESDAY, JUNE 11, 1996.

Present:

Acting City Mayor Benjamin C. de Guzman
Councilor Bonifacio Militar, Presiding Officer
Councilor Nilo G. Abellera
Councilor Leonardo R. Avila III
Councilor Marlene A. Librado
Councilor Antonio H. Vergara
Councilor Valentino C. Banzon
Councilor Danilo C. Dayanghirang
Councilor Tomas J. Monteverde, IV
Councilor Nenita R. Orcullo
Councilor Cornelio C. Reta III
Councilor Pedro R. Salvador
Councilor Alfredo H. Vergara
Councilor Victorio S. Advincula
Councilor Salvador W. Cingles
Councilor Shane L. Dolor
Councilor Paz C. Mata
Councilor Myrna Balodo-Ortiz
Councilor Reynaldo P. Reyes
Councilor Isidro T. Ungab
Councilor Nazario H. Navarro, Sr.

Official Business - Manila

Councilor Pilar C. Braga

Absent:

Councilor Aristeo W. R. Albay
Councilor Rene V. Galope
Councilor Diesdado A. Mahipus
Councilor Frances A. Robillo
Councilor Cesar C. Cabading

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RESOLUTION NO. 10254

The Proposed Amended Zoning Ordinance of Davao City for 1996
was presented for consideration and appropriate action of the Body by
Councilor Victorio S. Advincula, Floor Leader.

Councilor Advincula manifested that the Body shall continue pre-
senting amendments to the proposed Amended Zoning Ordinance which were
discussed during the previous sessions. He invited the attention of the
Members of the Body who made an observation to the effect that the draft
coming from the City Development Council with the Zoning Administrator's
Office who is helping and making the draft shows that there are many
provisions which are no longer applicable. Before the presentation of
the other amendments, Councilor Advincula manifested that this draft
of the proposed Amended Zoning Ordinance submitted by the Hon. City
Mayor together with the Comprehensive Development Plan on December 27,
1995 has been subject to thorough studies and deliberations by the
Members of the Committee and the entire Body as a whole during several
regular and special sessions held for the purpose.

Councilor Advincula briefed the Members of the Body that this Zoning Ordinance is a regularity measure which is enacted to identify the various land use districts or zones, designate the allowable uses therein and prescribe physical performance standards based on the approved general and urban land use plans as reflected in the Comprehensive Development Plan of the City of Davao which was adopted by the Sangguniang Panlungsod per Resolution No. 10105, with its corresponding Ordinance No. 3936, series of 1996 for the City of Davao to achieve the development goals, objectives and policies contained in the said plan.

Councilor Advincula therefore moved for the amendments as enumerated and read on records.

He likewise manifested that these proposed amendments already presented and approved by the Body shall be incorporated in the Amended Zoning Ordinance of the City of Davao for 1996 and that the City Planning & Development Coordinator will make the necessary incorporations of these amendments already approved by the Body of the draft as previously presented to the Body. The amendments of which are hereby reflected in the Minutes of the Special Session.

Considering that there were no other amendments presented, Councilor Advincula proposed for its approval.

After careful deliberation, on motion of Councilor Victorio S. Advincula, duly and jointly seconded by Councilors Antonio Vergara, Shane Dolor, Nenita Orcullo, Valentino Bannan, Myrna Dalodo-Ortiz, Marlene A. Librado, Tomas Monteverde III, co-sponsored jointly by Councilors Antonio Vergara, Marlene Librado, Danilo Dayanghirang, Paz Mata, Alfredo Vergara and Shane L. Dolor, it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve the Amended Zoning Ordinance of Davao City, all the provisions of the draft of the Amended Zoning Ordinance of Davao City for 1996 as submitted by the Honorable City Mayor thru the City Development Council and the Zoning Administrator's Office, subject to all the amendments already approved by the Body as contained in the minutes of the previous regular and special sessions, including the special session today, June 11, 1996.

RESOLVED, FURTHER, to approve an Ordinance, entitled:

ORDINANCE NO. 4042

AN ORDINANCE REVISING THE ZONING REGULATIONS FOR THE CITY OF DAVAO AND PROVIDING FOR THE ADMINISTRATION, ENFORCEMENT AND AMENDMENT THEREOF AND FOR THE REPEAL OF ALL ORDINANCES IN CONFLICT THEREWITH.

Whereas, to address the present and future development of the City, there is a need to revise the zoning regulation;

Whereas, in order to achieve these developments, a Comprehensive Development Plan was enacted to translate the City's vision into reality;

Whereas, the enactment of a Zoning Ordinance is necessary to regulate the use of the city's land resources in the implementation of the Comprehensive Development Plan of Davao City;

NOW, THEREFORE, BE IT ORDAINED and enacted by the Sangguniang Panlungsod of Davao City in session assembled, the herein Zoning Ordinance, providing for the administration, enforcement and amendments thereof, and for the repeal of all ordinances in conflict therewith.

ARTICLE I - TITLE AND PURPOSE

SECTION 1.- TITLE OF THE ORDINANCE. This shall be known as the Revised Zoning Ordinance of 1996 of the City of Davao,

SECTION 9. VIOLATION AND PENALTY. Any person who violates any provisions of this Ordinance shall, upon conviction, be punished by a fine of not less than P500.00 per day but not more than P1,000.00 per day or by imprisonment of not less than six (6) months but not exceeding one(1) year or both at the discretion of the Court. In case of violation by a corporation, partnership or association, the penalty shall be imposed upon the erring officer thereof.

SECTION 10. SUPPLETORY EFFECT OF OTHER LAW AND DECREES.
The provisions of this Ordinance shall be without prejudice to the application of the existing laws.

SECTION 11. BUSINESS PERMITS AND/OR LICENSES. As a suppletory provision to the City's Taxing Ordinance of 1974 as amended, no Business / Mayor's permits and/ or licenses of any kind shall be granted or issued in favor of any establishment is situated/located in non-conforming area or in areas where such business or establishment is not allowed under the provision of this Ordinance particularly Article V, Section 2 to 7, inclusive;

SECTION 12. REPEALING CLAUSE. All laws, ordinances, orders, issuances, rules and regulations or part thereof which are inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 13. EFFECTIVITY CLAUSE. This Ordinance shall take effect upon approval.

ENACTED: June 11, 1996

CARRIED, UNANIMOUSLY.

(SGD.) BONIFACIO E. MILITAR
Presiding Officer
Feb. 07, 1997

ATTESTED:

(SGD.) GUILLERMO G. SALDANA
Secretary, Sangguniang Paniungsod

APPROVED:

(SGD.) RODRIGO R. DUTERTE
City Mayor

ATTESTED:

(SGD.) ANTONIO V.A. LLAMAS
City Administrator

CERTIFIED TRUE COPY:

Lilia D. Arias
LILIA D. ARIAS
Legislative Staff Officer V